

PARTICIPANT WAIVER, RELEASE OF LIABILITY & ASSUMPTION OF RISK

Please read carefully before confirming your booking.

1. INTRODUCTION

This Waiver, Release of Liability, and Assumption of Risk Agreement ("Agreement") is entered into between the participant ("Participant") and DinkWithEQ, operated by Coach Eddie Quan ("Coach EQ"), Oregon, USA. By booking and/or attending any pickleball coaching session, clinic, or related activity organized by DinkWithEQ, the Participant agrees to all terms set forth herein.

2. ASSUMPTION OF RISK

Participant acknowledges that pickleball and related physical activities involve inherent risks including but not limited to: sprains, strains, fractures, contusions, eye injuries from ball impact, cardiovascular events, heat-related illness, and other physical harm. These risks exist regardless of instruction provided. Participant voluntarily assumes all such risks, both known and unknown. Participant certifies they are physically fit to participate and have not been advised otherwise by a qualified medical professional.

3. RELEASE OF LIABILITY

In consideration for being permitted to participate in DinkWithEQ coaching sessions, Participant hereby releases, waives, discharges, and covenants not to sue DinkWithEQ, Coach Eddie Quan, their affiliates, agents, employees, representatives, successors, and assigns (collectively "Released Parties") from any and all liability, claims, demands, actions, or causes of action arising out of or related to any loss, damage, injury, or death sustained by Participant while participating in any DinkWithEQ session.

4. INDEMNIFICATION

Participant agrees to indemnify and hold harmless the Released Parties from any loss, liability, damage, or cost they may incur due to Participant's participation in any DinkWithEQ activity, whether caused by negligence or otherwise.

5. MEDIA RELEASE & PHOTOGRAPHY

Participant grants DinkWithEQ permission to photograph, video record, and use their likeness in connection with promotional materials, social media, and website content without compensation. If Participant does not consent to media use, they must notify Coach EQ in writing prior to the session.

6. CANCELLATION & RESCHEDULING POLICY

Participant must provide at least 24 hours advance notice to cancel or reschedule a booked session. Failure to provide timely notice or failure to appear may result in forfeiture of the session fee. DinkWithEQ reserves the right to cancel sessions due to weather, court availability, illness, or other unforeseen circumstances, in which case a

full refund or reschedule will be offered.

7. CODE OF CONDUCT

Participant agrees to conduct themselves in a respectful, sportsmanlike manner at all times. Harassment, abusive language, or disruptive behavior toward Coach EQ or other participants will result in immediate removal from the session without refund. DinkWithEQ reserves the right to refuse service to anyone.

8. HEALTH & SAFETY

Participant agrees to inform Coach EQ of any recent injuries, surgeries, medical conditions, or physical limitations before participation. Participant is responsible for bringing adequate water, appropriate footwear, and any required personal protective equipment. Participant acknowledges that Coach EQ is not a licensed medical professional and cannot provide medical advice.

9. GOVERNING LAW & SEVERABILITY

If any provision of this Agreement is held invalid or unenforceable, the remaining provisions shall continue in full force and effect. This Agreement shall be governed by the laws of the State of Oregon, USA.

10. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties regarding its subject matter. By checking the acknowledgment box during online booking, Participant confirms they have read, understood, and agree to be bound by all terms herein.

PARTICIPANT ACKNOWLEDGMENT

By proceeding with your booking and checking the agreement box on the booking form, you confirm that you have read this entire document, understand its contents, and voluntarily agree to all terms and conditions stated above.

Participant Name: _____

Date: _____

Signature: _____

DinkWithEQ · Coach Eddie Quan · Oregon, USA

Questions? Contact Coach EQ before booking your session.